

- File No: RR/00301/2023

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by RCI BANQUE, S.A. BRANCH IN SPAIN (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated April 4, 2023, and based on the following

FACTS

FIRST: On April 4, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file RR/00301/2023, whereby RCI BANQUE, S.A. BRANCH IN SPAIN was imposed a fine of €20,000 (twenty thousand euros) for an infringement of Article 17 of the GDPR, classified under Article 83.5 of the GDPR.

This resolution, which was notified to the appellant on April 5, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00369/2022, the following was recorded:

FIRST. On March 11, 2021, a written complaint was received by the AEPD from FACUA, representing the complainant, against the respondent motivated by the receipt of phone calls and text messages, in which a pending debt related to the financing of a vehicle was claimed; financing that the complainant is unaware of as he has no legal or contractual relationship with the respondent. He also states that the SMS messages directed to him refer to him as Transportes A.A.A., S.L.

SECOND. Screenshots have been provided showing messages sent by the respondent to the complainant dated July 22, 2020, August 3, 2020, August 5, 2020, August 11, 2020, March 31, 2021, and April 19, 2021, with the following content:

"Wednesday, July 22, 2020

UNPAID RECEIPT VEHICLE

PAY NOW (...) € WITH CARD AT PHONE ***PHONE.1 OR MAKE
TRANSFER B. SANTANDER ES ... TO AVOID ASNEF OF HOLDERS AND
GUARANTORS."

"Monday, August 3, 2020

RCI WE INFORM YOU

THAT YOU HAVE A PENDING DEBT, WE REQUEST
YOU CALL ***PHONE.1

TO REGULARIZE THE SITUATION

PHONE ***PHONE.1"

"Wednesday, August 5, 2020

RCI WE INFORM YOU

THAT YOU HAVE A PENDING DEBT, WE REQUEST
YOU CALL ***PHONE.1

TO REGULARIZE THE SITUATION

PHONE ***PHONE.1"

"Tuesday, August 11, 2020

URGENTDEBT

VEHICLE**WE REQUEST

URGENT CONTACT

TO AVOID INCLUSION

IN ASNEF OF HOLDER AND

GUARANTORS. CALL NOW AT

***PHONE.1"

"Wednesday, March 31, 2021

LAST NOTICE

WE CANNOT LOCATE YOUR
PAYMENT***UNTIL 3 PM
TO MAKE PAYMENT AND
STOP THE PROCESS** CALL
URGENTLY AT ***PHONE.1"

"Monday, April 19, 2021

WE NEED URGENT CONTACTDEBT
VEHICLE**TRANSFER TO
PREJUDICIAL DEPARTMENT. LAST FRIENDLY
WAY PHONE ***PHONE.1"

THIRD. There is a written complaint from the complainant directed to the respondent dated August 25, 2020, informing him of the telephone harassment he is being subjected to on his mobile line ***PHONE.2 as a result of a debt linked to the financing of a vehicle he is unaware of, requesting the deletion of his personal data.

FOURTH. The response provided by the respondent to the previous writing, dated September 9, 2020, indicates that: "...we inform you that with the data provided, no person appears as a client of this Entity."

The complainant, as can be verified in the second fact, subsequently continued to receive messages on his mobile phone.

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FIFTH. The respondent in the written response to the information request from the AEPD dated 15/02/2022 stated, "That, upon consulting our systems, there is no information or documentation regarding the person whose data you have provided to us. Therefore, we are unable to send you the requested information."

SIXTH. On 18/04/2022, the AEPD sent the respondent a second request for information regarding the phone number ***TELÉFONO.2. In their response, they stated, "The phone number you provided is in our system associated with loan contract no. ***PRÉSTAMO.1 formalized with TRANSPORTES A.A.A., S.L. with CIF..., on 04/11/2015 and concluded on 05/11/2021." They continued, "This phone number was provided directly by the representative of the legal entity holding the loan contract, through their Client Space, during the commercial relationship, specifically on 17/07/2020. This Space is available on the RCI BANQUE website for its clients to carry out, after registration, certain management tasks and inquiries regarding the contracts they have in force with the Entity. Through this Client Space, registered clients have the possibility to modify certain data in the 'My Profile' section, including the contact phone number linked to their contract. In this case, the client of the aforementioned loan contract modified, through this functionality, a pre-existing phone number (second contact phone) by entering the number ***TELÉFONO.2.

(...)

THIRD: The appellant submitted on 05/05/2023, to this Spanish Agency for Data Protection, a request for reconsideration, basing it fundamentally on the allegations already made throughout the procedure and, additionally, that it cannot be asserted that there has been a lack of response to the right of erasure exercised by the claimant; that the appellant has maintained proactive responsibility at all times; the absence of damages caused to the claimant; that the appellant became aware of the personal data of the phone through the information provided by the AEPD; the absence of proportionality in the imposed sanction and the measures adopted by the appellant to prevent incidents like the one that led to the procedure.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Regarding the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in Legal Grounds II to V of the contested Resolution, as transcribed below:

“II

The facts revealed materialize in the receipt of calls on the claimant's mobile phone line and text messages demanding payment of an outstanding debt with the respondent arising from the financing of a vehicle, which the claimant is unaware of as they do not maintain any legal relationship with the respondent, which would constitute a violation of the regulations on personal data protection.

Article 58 of the GDPR, Powers, states:

“2. Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case;

(...)”

III

1. The exercise of the right to erasure is regulated in Article 17 of the GDPR, which establishes:

“1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;

b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a), or Article 9(2)(a), and this is not based on another legal ground;

c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);

d) the personal data have been unlawfully processed;

e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;

f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

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2. When personal data has been made public and the data controller is obliged, pursuant to the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of its application, shall adopt reasonable measures, including technical measures, with a view to informing those responsible for processing the personal data of the data subject's request for the deletion of any link to such personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

a) to exercise the right to freedom of expression and information;

b) for compliance with a legal obligation requiring the processing of data imposed by Union law or the law of the Member States applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2,

letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 could make it impossible or seriously impede the achievement of the objectives of that processing; or

e) for the establishment, exercise, or defense of legal claims.”

Recital 59 of the GDPR states that:

“Mechanisms should be put in place to facilitate the data subject's exercise of their rights under this Regulation, including mechanisms to request and, where appropriate, obtain free of charge, in particular, access to personal data and their rectification or deletion, as well as the exercise of the right to object. The data controller must also provide means for requests to be made electronically, in particular where personal data are processed by electronic means. The data controller shall be obliged to respond to the data subject's requests without undue delay and at the latest within one month, and to explain their reasons in case they do not comply.”

And Recital 66 of the GDPR states that:

“In order to strengthen the ‘right to be forgotten’ in the online environment, the right to deletion should be extended in such a way that the data controller who has made personal data public is obliged to inform those responsible for processing such personal data to delete any link to them, or copies or replicas of such data. In doing so, the data controller must take reasonable measures, taking into account the technology and means at their disposal, including technical measures, to inform the request of the data subject to those responsible for processing the personal data.”

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2. The regulations regarding the protection of personal data allow you to exercise your rights of access, rectification, opposition, deletion, limitation of processing, portability, and not to be subject to individualized decisions before the data controller.

Therefore, this right can be exercised before the controller by requesting the deletion of your personal data when any of the circumstances established in Article 17 of the GDPR are met.

However, it should be noted that this right is not unlimited, such that it may be feasible not to proceed with deletion when the processing is necessary for the exercise of the freedom of expression and information, for compliance with a legal obligation, for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller, for reasons of public interest, in the area of public health, for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, or for the formulation, exercise, or defense of claims.

3. The documentation in the file provides clear evidence that the respondent violated Article 17 of the GDPR, the right to deletion, by not addressing the same, despite the respondent's claims to the contrary, as evidenced by the fact that they continued to process the claimant's data.

The documentation in the file shows that the respondent linked the claimant's mobile phone number to loan contract number ***PRÉSTAMO.1; a loan that had been formalized with TRANSPORTES A.A.A., S.L., with CIF ..., from 04/11/2015 to 05/11/2021, causing the claimant to suffer harassment, in the form of calls and SMS messages deposited on their mobile phone demanding payment of a debt related to the financing of a vehicle, the subject of the aforementioned loan contract, which the claimant had never subscribed to with the respondent entity with which they had no contractual relationship whatsoever.

It should be noted that the respondent, in their written response to the information request sent by the AEPD, dated 15/02/2022, stated, “Upon consulting our systems, we have no information or documentation regarding the person whose data you have provided to us. Therefore, we are unable to send you the requested information.”

However, on 18/04/2022, the Agency sent the respondent a second request, asking for information

regarding the phone number ***TELÉFONO.2, and in their response, this time they revealed that “the phone number you provided is in our system associated with loan contract no. ***PRÉSTAMO.1 formalized with TRANSPORTES A.A.A., S.L. with CIF ..., on 04/11/2015 and concluded on 05/11/2021.”

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It should be remembered, as stated in the proven facts, that on 25/08/2020 the same claimant sent a letter to the respondent informing them of the harassment he had been suffering on his mobile phone line, demanding payment of a debt arising from the financing of a vehicle, and threatening that failure to pay would result in being included in solvency files, commonly referred to as delinquency files; financing that he claimed to be unaware of, indicating “That, since the past 22nd of July of this year... he has been harassed by the company we are addressing, through calls and SMS sent to the phone line associated with the number ***TELÉFONO.2, requesting the cancellation of his data, and the response was that ‘with the data provided, no person appears as a client of this entity.’

One of the main innovations and the principal concept presented by the GDPR is the principle of proactive responsibility. This principle is defined as the necessity for the data controller to apply appropriate technical and organizational measures in order to ensure and demonstrate that the processing of personal data is in compliance with the Regulation. In other words, it is not enough to comply with data protection regulations; it is also necessary to be able to demonstrate that compliance is being achieved.

This principle is enshrined in Article 5.2 of the GDPR, which states:

“2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it (‘proactive responsibility’).”

This principle therefore requires a conscious and diligent attitude towards all personal data processing activities carried out, an attitude that has not existed in the present case since, in response to the letter sent by the claimant on 25/08/2020, the claimant should have acted with greater diligence and proactivity in order to preserve his rights regarding the processing of his personal data and its legitimacy, which is the opposite of what occurred on 18/04/2022 when the AEPD sent him its second request, asking for information related to the phone number ***TELÉFONO.2 belonging to the claimant.

And that in light of these actions, the respondent had proceeded to delete the claimant's phone number before responding to the request, a measure that should have been carried out in light of the claimant's letter, verifying and checking that he was not a client of the entity and that he could not belong to TRANSPORTES A.A.A., S.L., and from that moment on, the claimant's personal data should not have been subject to processing as the respondent was not legitimized to do so, having neither consent nor authorization for it.

4. In the letter dated 25/08/2020, in which the claimant informed the respondent of the harassment he was being subjected to on his mobile line ***TELÉFONO.2 as a consequence of a debt linked to the financing of a vehicle he was unaware of, he requested the cancellation of his personal data exercising the right of suspension before the controller and specified his request indicating that:

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“- REFRAIN from continuing to demand any payment.

- PROCEED TO DELETE the personal data of our partner from your internal database.

- PROCEED TO DELETE or refrain from including the personal data of our partner from all solvency files as they do not correspond to a certain, due, or even less enforceable debt...”

In accordance with the provisions of Article 17 of the GDPR, the claimant had the right to obtain the

deletion of their data by the respondent without undue delay, especially since such data was being processed unlawfully and exposing the claimant to an unjust and unfounded situation.

Therefore, with the data provided by the affected party in their request, the respondent should have acted with greater responsibility given what the claimant was enduring and realized that the messages and calls were being made to someone who was not obliged to suffer them as they had no contractual relationship with the entity, and should not have limited themselves to responding "that with the provided data no person appears as a client of this Entity," since with that same data the response was contrary to the request from the AEPD dated 04/18/2022.

According to the statements of the respondent, the aforementioned phone number was provided directly by the representative of the legal entity holding the loan contract, through their Client Space, during the commercial relationship on 07/17/2020; this space is available on the respondent's website for their clients to carry out certain procedures and inquiries regarding the contracts they have in force with the Entity.

In this case, the client of the aforementioned loan contract modified the pre-existing phone data (second contact phone) through this functionality, entering the number ***PHONE.2.

Furthermore, the respondent has stated that they were not aware that the holder of the telephone line had contacted the entity by any means to express the situation suffered or had filed any complaint.

However, such a statement must be disregarded and cannot be accepted, in light of the documentation provided; it is sufficient to point out the letter from the claimant and the response offered to it dated 09/09/2020 cited above, which evidences the contrary.

5. Regarding the absence of culpability alleged by the respondent, it should be noted that the principle of culpability is required in the sanctioning procedure, and thus the STC 246/1991 considers a responsibility without fault inadmissible in the field of sanctioning administrative law.

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The Supreme Court (STS April 16, 1991, and STS April 22, 1991) considers that from the element of culpability it follows "that the action or omission, classified as an administratively sanctionable infringement, must, in any case, be attributable to its author, either by intent or negligence, imprudence, or excusable ignorance." The same Court reasons that "it is not enough...for exculpation against a typically unlawful behavior to invoke the absence of fault," but rather it is necessary "that the diligence required by the one claiming its non-existence has been employed." (STS January 23, 1998). This doctrine is further elaborated in STC (Second Chamber) 129/2003, of June 30, 2003, which, citing the previous STC 246/1991, states in its F.J. 8:

(...) the admission in our administrative sanctioning law of the direct responsibility of legal entities, thus recognizing their infringing capacity, entails that responsibility is configured based on the capacity for infringement and the responsibility, "which derives from the legal right protected by the norm that is infringed and the necessity for that protection to be truly effective... and from the risk that, consequently, the legal entity subject to compliance with that norm must assume" (STC 246/1991, FJ 2). In the present case, given that there was evidentiary activity against the facts attributed to the now-appellant company, it was up to them to provide the administrative bodies that intervened in the processing of the file with a principle of proof, however minimal, that would allow them to think that the infringement of the norm was not attributable to them (...).

Therefore, the entity has suffered from a serious lack of diligence as evidenced by the fact that its internal procedures or action protocols were ineffective and were unable to detect that the data provided by the claimant and the AEPD, especially their phone number, did not belong to the actual debtor, Transportes A.A.A., S.L., with whom a loan contract had been made, and that the non-payment notices continued to be sent to their mobile phone, demanding payment of a debt that did not belong to them.

Regarding the good faith alleged, it should be noted that the National Court in its rulings, among others that of 05/24/02, has stated that "good faith in action, to justify the absence of fault –as is done in the

present case–; it is sufficient to say that this allegation is undermined when there is a specific duty of vigilance derived from the professionalism of the infringer. In this traditional line of reasoning, the STS of March 12, 1975, and March 10, 1978, reject the allegation of good faith when the infringer is burdened with duties of vigilance and diligence derived from their professional status.”

Finally, the respondent alleges error in the legal qualification since it is not true that there was an absence of response to the exercise of the right of deletion by the interested party and that when the AEPD communicated the claimant's mobile number, it was disassociated from Transportes A.A.A., S.L., and that such conduct should be classified as minor, so the infringement would be time-barred.

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First, nowhere is it stated, as the respondent claims, that there was an absence of response, since the proven facts themselves include the response offered to the claimant and the acting inspector by the respondent; what is asserted is that the right was not attended to because the treatment continued despite the written communications sent (which should have at least prompted the cessation of the treatment), as evidenced by the fact that they continued to pressure the claimant with repeated SMS messages and warnings that in case of non-payment, he would be included in debtors' files.

Second, it is also not true, as the respondent states, that it was only when the acting inspector communicated the claimant's mobile number that the link of the data with the third party, Transportes A.A.A., S.L., was discovered, since the claimant (his representative) had already communicated it in a letter dated 25/08/2020.

Therefore, it had to take up to three attempts, through respective writings, for the respondent to stop processing the claimant's data, realize that he was not the debtor, and detach the link that associated the mobile number as belonging to the true debtor and client of the company.

From the above, it is deduced that the right of erasure exercised by the claimant was not attended to, which implies in a certain way its obstruction, its impediment, the repeated non-attention to the exercise of the same, considering that such conduct constitutes a violation of Article 17 of the GDPR, an infringement that is classified in Article 83.5.b) of the GDPR.

IV

The infringement of Article 17 of the GDPR is classified in Article 83.5.b) of the aforementioned GDPR in the following terms:

“5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

(...)

b) the rights of the data subjects under Articles 12 to 22;

(...)”

For its part, the LOPDGDD in its Article 71, Infringements, states that:

“Infringements are constituted by acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law.”

And in its Article 72, for the purposes of prescription, qualifies as “Infringements considered very serious”:

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“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are

considered very serious and shall prescribe after three years:

(...)

k) The obstruction or hindrance or repeated non-attention to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679.

(...)”

V

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;
- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular if the controller or processor notified the infringement and, in that case, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor of which it is...

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relating to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” establishes that:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The link between the infringer's activity and the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

- According to the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case for the infringement of Article 17 of the GDPR typified in Article 83.5 of the aforementioned Regulation for which the respondent is held responsible, an initial assessment considers the following concurrent factors:

As aggravating circumstances:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question; it should not be forgotten that we are dealing with the infringement of a right of the affected party, the right to erasure, which has not been addressed by the entity, resulting in the claimant being pressured to pay a debt that was not theirs, causing them harm with the attempt to make them liable for a debt that did not belong to them and the attempt, following the non-payment, to include them in files commonly referred to as delinquency files; furthermore, the processing operation has resulted in their personal data being processed without any legitimacy as no legal basis for its processing has been evidenced.

Additionally, the personal data of the claimant has been processed by the respondent, without it being indicated that they are or have been a client of the entity (Article 83.2.a) of the GDPR).

- Although it is not possible to assert that the entity acted intentionally or with malice, there is no doubt that it has incurred a serious lack of diligence by not addressing the exercised right, as evidenced by the fact that it continued and persisted in its processing, as shown by the messages sent after the exercise of the right (Article 83.2.b) of the GDPR).

- The ongoing nature of the infringement, since the respondent has been processing the personal data of the claimant until 19/04/2021; since the complaint letter was sent, the claimant's data should have ceased to be processed without any delay (Article 76.2.a) of the LOPDGDD in relation to Article 83.2.k).

- The activity of the allegedly infringing entity is linked to the processing of data from both clients and third parties. In the activity of the respondent entity, the processing of personal data of its clients as well as third parties is essential, so given the volume of business, the significance of the conduct subject to this complaint is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

As mitigating circumstances:

- The number of affected individuals, as it is only known that the claimant has been affected.”

III

The appellant in their appeal document alleges their disagreement with the contested resolution reiterating what has already been stated during the processing of the procedure and also, it cannot be claimed that there has been a lack of response to the right of erasure exercised by the claimant; that the appellant has consistently demonstrated proactive responsibility; the absence of damages caused to the claimant; that the appellant became aware of the personal data of the phone through the information provided by the AEPD; the absence of proportionality in the imposed sanction and the measures adopted by the appellant to prevent incidents like the one that led to the procedure.

- The respondent alleges that it cannot be claimed that there has been a lack of response to the right of erasure exercised by the claimant and that it was not until the Agency communicated the claimant's phone number that it was confirmed that it was linked to a third party, Transportes A.A.A..

However, such arguments cannot be accepted; it was already pointed out in the contested resolution and reiterated to the appellant that it has not been stated that there was...

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absence of response since the proven facts include the response offered both to the claimant and to the acting inspector by the respondent in response to the request made; what was stated without a

doubt was that the right was not attended to because the treatment persisted despite the writings sent (which should have at least prompted the cessation of the treatment), and the claimant continued to be pressured with new SMS messages and warnings that in case of non-payment, he would be included in debt files.

The appellant again incurs the error of linking the knowledge of the phone number to the moment when the AEPD directed a request for information dated 15/02/2022; however, it must be clarified to the appellant that the phone number was already known to him beforehand because it was provided by the claimant, through his representative, in the writing he sent on 25/08/2020 complaining about the SMS messages that were being sent to him, as stated in the proven facts:

“THIRD. There is a writing from the claimant addressed to the respondent dated 25/08/2020, informing him of the telephone harassment to which he is being subjected on his mobile line ***PHONE.2 as a consequence of a debt linked to the financing of a vehicle that he does not acknowledge having, requesting the deletion of his personal data.”

Therefore, as also pointed out in the resolution, the respondent has not demonstrated compliance with the principle of proactive responsibility, because it is not enough to comply with the regulations on data protection, but also to demonstrate that compliance is being fulfilled.

- The appellant has alleged his disagreement with the statement made by the AEPD regarding the damages caused to the claimant since he was not considered at any time as a client of the same and therefore could not be considered a debtor of the same.

However, such an allegation cannot be accepted; it is striking and contradictory what the appellant pointed out that the claimant was not considered in such qualities and yet had no qualms about sending him numerous text messages in which he was pressured and urged to pay the debt to avoid his inclusion in solvency files, commonly referred to as delinquent files.

On the other hand, we must not forget that we are dealing with the fundamental right to the protection of personal data, which seeks to guarantee the individual a power of control over their personal data, its use, and destination, with the aim of preventing its unlawful and harmful processing for their dignity.

- The appellant also claims the manifest disproportionality in the amount of the imposed sanction, in light of the events that occurred, the allegations made, and the circumstances that concur in the specific case.

Regarding the principle of proportionality of sanctions, the A.N. in numerous judgments has stated that the principle of proportionality cannot be exempt from judicial control, as the margin of appreciation granted to the Administration in imposing sanctions within the legally established limits...

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As provided, it must be developed considering, in any case, the concurrent circumstances, in order to achieve the necessary and due proportion between the alleged facts and the responsibility required, given that any sanction must be determined in accordance with the gravity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the act.

Thus, proportionality constitutes a normative principle that is imposed on the Administration and that reduces the scope of its sanctioning powers.

Well, in accordance with the circumstances present in this case, the resolution does not violate the principle of proportionality in determining the imposed sanction, resulting in a balanced and proportionate response to the severity of the infringement committed, the importance of the facts, as well as the circumstances taken into account to grade the sanction, without any reasons being appreciated that further justify the reduction made, especially considering the amount to which such a sanction may ascend in accordance with Article 83.5.b) of the RGDP, which provides for an infringement of Article 17 of the RGDP, "... administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

Therefore, it is considered that the imposed sanction is highly balanced and proportionate to the

severity of the facts presented in the contested resolution.

IV

Consequently, in this appeal for reconsideration, the appealing party has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by RCI BANQUE, S.A. BRANCH IN SPAIN against the resolution of this Spanish Agency for Data Protection issued on 04/04/2023, in file RR/00301/2023.

SECOND: TO NOTIFY this resolution to RCI BANQUE, S.A. BRANCH IN SPAIN.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A. or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection

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